

Forensic Judgment Analysis — Complete Decision Map

*16 Decisions Across 4 Jurisdictions — Chronological Map with Analytical
Tags*

Case references

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | FA-2026-000019

Nadia Zahmoul

Litigant in Person

3 April 2026

Veritas Numquam Perit

SECTION A — KEY TO ANALYTICAL TAGS

Tag	Definition
FABRICATED	Finding made without evidential basis — or directly contradicted by primary evidence in the record
MISCHARACTERISED	Finding engages a simplified, substituted, or reframed version of the actual issue — the court answered a different question
SUPPRESSED	Material evidence or application before the court not referenced, addressed, or determined
UNSUPPORTED	Conclusion stated without adequate reasoning or without engaging the evidence
STANDSTILL	Proceeding active but no movement — pending update or determination
—	No analytical tag — procedural or neutral decision

SECTION B — PROCEEDINGS INDEX

- **BV20D01752** — Family Division (High Court) — MacDonald J — financial remedy proceedings — ongoing
- **CA-2024-001342** — Court of Appeal — Moylan LJ (PTA refused 23 Dec 2024); King LJ (reopen refused 4 Aug 2025)
- **AC-2025-LON-004293** — Administrative Court — Judicial Review — Lieven J (directions 4 Dec 2025); Collins Rice J (permission refused 11 Mar 2026)
- **FA-2026-000019** — Family Division Appeals — FP161 appeal against Decree Absolute (16 Jan 2026) — STANDSTILL pending JR update
- **BL-2024-001217** — Chancery Division — Detach Lending v Zahmoul — Master Pester — not included in this analysis

SECTION C — CHRONOLOGICAL DECISION MAP — 16 DECISIONS ACROSS 4 JURISDICTIONS

Decision 1 — 9 June 2023

Court / Judge: Family Division — MacDonald J — BV20D01752 (Transcript)

Decision: Oral hearing — MPS/LSPO — 42-page transcript

Key Finding / Analytical Note: KZ discloses Oxus employment in transcript at [481]: *"I have been blessed to have this job with Oxus Acquisition, which is a public company... everything they do is scrutinised by accountants, auditors."* KZ describes reimbursed property rentals for Oxus/Kazakhstan parent entity. This is the primary oral record of KZ's Oxus role and its financial character. Transcript is before the court at the final hearing.

Tags: SUPPRESSED

Decision 2 — 5 July 2023

Court / Judge: Family Division — MacDonald J — [2023] EWFC 111

Decision: LSPO & MPS hearing — full LSPO declined; reduced MPS ordered

Key Finding / Analytical Note: Court declines full LSPO despite documented financial disparity. KZ in person. NZ represented by Ewins KC (Burgess Mee). Pattern established: KZ non-compliance treated as manageable while NZ's resources eroded.

Tags: UNSUPPORTED

Decision 3 — 28 November 2023

Court / Judge: Family Division — MacDonald J — [2023] EWFC 210

Decision: Interim — freezing order return date; 8 applications — all H's; MPS/LSPO discharge sought by H

Key Finding / Analytical Note: Court characterises proceedings as generating *"proliferating applications"* — all 8 applications before the court are H's. NZ represented by Southgate KC (Bloom Budd). H by Campbell KC (Crisp & Co). Characterisation of proliferation attributed to proceedings generally but sets narrative used against NZ in EWFC 79. Disability context entirely absent.

Tags: MISCHARACTERISED

Decision 4 — 18 April 2024

Court / Judge: Family Division — MacDonald J — [2024] EWFC 79

Decision: FINAL JUDGMENT — financial remedy — 39 pages

Key Finding / Analytical Note: Para 2: Imerman MISCHARACTERISED. Para 5: participation SUPPRESSED — *"I know"* (att. notes p.42 l.1986). Para 5: Oxus — *"satisfied not proper to include"* — one sentence, no reasoning — UNSUPPORTED. Para 11: Imerman *"carefully categorised files"* MISCHARACTERISED. Para 64: disability inversion FABRICATED — 22 oral refs to disability → 0 in judgment; asset obsession attributed 22 times in judgment, put once in evidence. Para 76: Oxus £0 FABRICATED — D11 filed 7 Mar 2024, never sealed, never determined. Para 96: *"no expert evidence on disability"* FABRICATED — Prof Libby letter in bundle.

Tags: FABRICATED · MISCHARACTERISED · SUPPRESSED · UNSUPPORTED

Decision 5 — 29 April 2024

Court / Judge: Family Division — MacDonald J (on papers)

Decision: PTA refused — first appeal to trial judge

Key Finding / Analytical Note: Para 14: Part 3A addressed by reference to curtain and extra time at hearing only — post-trial cessation not addressed. Ground 4 (vulnerability) dismissed without engaging post-trial participation failure. Para 10: D11 characterised as non-compliant with FPR — no engagement with content or with suppression by Campbell KC within 3 hours of transmission. Ground 7 (Oxus/US tax fraud) dismissed in one sentence. BM stepped down 7 March 2024 — order face states "UPON hearing BM KC" — false statement not corrected.

Tags: MISCHARACTERISED · SUPPRESSED · UNSUPPORTED

Decision 6 — 24 May 2024

Court / Judge: Family Division — MacDonald J — [2024] EWFC 114

Decision: COSTS JUDGMENT — £255,654.50 against NZ

Key Finding / Analytical Note: Para 3: Article 6 not addressed; NZ non-participation caused by H's MPS breach not engaged. Imerman £25,000: FABRICATED — Withers LLP correspondence contradicts finding. Double sanction: £800k add-back (EWFC 79) + £255,654.50 costs = double penalty on same conduct. Order face: "UPON hearing BM KC" — BM stepped down 7 March 2024. No hearing took place 24 May 2024. Two false statements on face of order.

Tags: FABRICATED · SUPPRESSED · UNSUPPORTED

Decision 7 — 24 May 2024

Court / Judge: Family Division — MacDonald J — Final Order (as amended 3 Jun 2024)

Decision: FINAL ORDER — financial settlement — drafted unilaterally by H's side

Key Finding / Analytical Note: Order face confirms: "*the applicant not having submitted written submissions as to costs nor representations in respect of the form of this order and the respondent having submitted written submissions and representations in respect of the form of the order.*" NZ excluded from draft order process. H's side drafted the order unilaterally. Material changes to financial settlement made without NZ's participation. Para 34 inserted without notice. MPS arrears remitted without NZ's input. NZ's claims dismissed and barred from further application — all on H's unilateral terms.

Tags: FABRICATED · SUPPRESSED · UNSUPPORTED

Decision 8 — 23 December 2024

Court / Judge: Court of Appeal — Moylan LJ — CA-2024-001342

Decision: PTA refused — Court of Appeal — 17 grounds disposed of on papers

Key Finding / Analytical Note: *Volpi v Volpi* [2022] applied to para 64 — wrong category: *Volpi* protects findings based on evidence heard; para 64 is FABRICATED from evidence not in record. Post-trial Part 3A cessation conflated with hearing-time measures — answered different question. 17 grounds disposed of without oral hearing. False statements on order face (skeleton para 3) not addressed. "*Comprehensively explained and justified*" asserted without analysis.

Tags: MISCHARACTERISED · SUPPRESSED · UNSUPPORTED

Decision 9 — 10 February 2025 (first filing) onwards daily

Court / Judge: Family Division — BV20D01752 — High Court

Decision: RECUSAL APPLICATION — N244 — filed daily from 10 Feb 2025 — never determined

Key Finding / Analytical Note: Filed on N244: 10 Feb, 31 Mar, 9 Apr, 10 Apr, 11 Apr 2025 and daily thereafter. Escalated to Court of Appeal 6, 7, 8 May 2025 (3:46am on hearing morning). Court of Appeal (Peter Cobourn / Master Meacher) redirected to High Court 10 Jun 2025. Never listed. Never determined. MacDonald J sat 8 May 2025 with application pending — made findings of deliberate obstruction — did not mention recusal anywhere in 17-page judgment.

Tags: SUPPRESSED

Decision 10 — 14 February 2025

Court / Judge: Family Division — HHJ Ashby — BV20D01752 — Order 3

Decision: Procedural order — D11, D50K, FC600 sealed

Key Finding / Analytical Note: D11 sealed 13 Feb 2025. D50K sealed 14 Feb 2025. FC600 sealed 14 Feb 2025. Procedural.

Tags: —

Decision 11 — 9 April 2025 (decided)

Court / Judge: Family Division — MacDonald J (on papers)

Decision: HARSHIP APPLICATION — C2 filed 4 Apr 2025 — dismissed 9 Apr 2025

Key Finding / Analytical Note: Dismissed as "*totally without merit*." Court states NZ would have funds if she co-operated with final order — no engagement with documented incapacity or MPS breach as cause of non-implementation. No jurisdiction asserted — no inquiry into alternative bases. Recusal application pending and not addressed. Dr Poyser letter (26 Mar 2025) before court — not engaged.

Tags: MISCHARACTERISED · UNSUPPORTED

Decision 12 — 8 May 2025

Court / Judge: Family Division — MacDonald J — [2025] EWFC (ex tempore) 17 pages

Decision: SET-ASIDE DISMISSED — NZ absent — ex tempore

Key Finding / Analytical Note: Recusal (filed daily from 10 Feb 2025) not mentioned anywhere. Dr Poyser letter (26 Mar 2025) before court — asks for advocacy support, raises autism query — court misreads as confirmation of ability to attend; no Part 3A assessment conducted. CLAAS assessment 15 May 2025 (one week later) confirms lifelong autism. Para 2: "*actively frustrated*" MISCHARACTERISED. Para 22: psychiatrist's letter UNSUPPORTED / MISCHARACTERISED. Para 39: "*deliberately obstructive*" FABRICATED — intent attributed to clinically documented conduct. Para 48: perjury dismissed UNSUPPORTED — D11 sealed, SEC proxy in evidence, IRS:CI active. Para 50: draft order FABRICATED — 379-record annex shows 6 iterations filed during NZ's incapacity. Para 62: "*wholly satisfied wife deliberately frustrated*" FABRICATED — recusal never determined; same judge.

Tags: FABRICATED · MISCHARACTERISED · SUPPRESSED · UNSUPPORTED

Decision 13 — 4 August 2025

Court / Judge: Court of Appeal — King LJ — CA-2024-001342-A

Decision: REOPEN REFUSED

Key Finding / Analytical Note: Participation complaint characterised as complaint about hearing-time measures — answered different question (complaint was about post-trial cessation). CPR 52.30 Stage 1: Moylan LJ's application of *Volpi* to FABRICATED finding treated as engagement — it was not. Stage 2 not reached on correct basis. Oxus: one sentence (para 5) treated as "*comprehensive explanation*".

Tags: MISCHARACTERISED · UNSUPPORTED

Decision 14 — 4 December 2025

Court / Judge: Administrative Court — Lieven J — AC-2025-LON-004293

Decision: Directions — urgent consideration refused

Key Finding / Analytical Note: Application described as "*extremely difficult to follow*" without engaging specific documented grounds. Directs defendants to file AoS within 21 days. Characterisation is analytically significant — the application was not incoherent; it raised specific, documented grounds.

Tags: UNSUPPORTED

Decision 15 — 11 March 2026

Court / Judge: Administrative Court — Collins Rice J — AC-2025-LON-004293

Decision: PERMISSION REFUSED (TWM) — costs £3,125.50 against disabled LiP

Key Finding / Analytical Note: JR characterised as asking Family Court to investigate criminal matters — it was not. Administrative acts (removing participation measures without judicial act, failing to seal applications) characterised as judicial determinations exempt from JR. HMCTS confirmed no order exists — where no judicial act exists no judicial function exists to exempt. EA 2010 s.149 PSED not addressed before costs against disabled LiP.

Tags: MISCHARACTERISED · UNSUPPORTED

Decision 16 — 16 January 2026 (order) / 19 January 2026 (appeal filed)

Court / Judge: Family Division — Recorder Sirikanda — BV20D01752 → FA-2026-000019

Decision: DECREE ABSOLUTE granted — Appeal filed FA-2026-000019 — STANDSTILL

Key Finding / Analytical Note: Decree Absolute granted 16 Jan 2026 by Recorder Sirikanda. NZ filed FP161 appeal 19 Jan 2026 with application for stay. Fee remission granted (HWF-ALM-BY1). Court requested JR update — no update available as AC-2025-LON-004293 permission refused 11 Mar 2026. FA-2026-000019 at standstill pending JR update. No hearing listed. No movement.

Tags: STANDSTILL

SECTION D — KEY PRIMARY SOURCE NOTE

TRANSCRIPT [481] — 9 June 2023 — KZ oral evidence re Oxus

> "I have been blessed to have this job with Oxus Acquisition, which is a public [inaudible] company [inaudible] so everything they do is scrutinised by accountants, auditors. And I have provided my wife, and I am not sure if Your Lordship has had a chance to see it, I have provided my wife from the CEO of the company some of the transactions, because the mother company is from Kazakhstan, so what has happened the credit cards get denied when then rent property in Europe so I rent it for them and they pay me back everything."

This is the primary oral record of KZ's Oxus role. It confirms employment, public company status, Kazakhstan parent entity, and personal credit card use for company transactions. EWFC 79 para 76 states NZ did not appear to dispute Oxus was non-matrimonial. Para 64 does not reference this transcript evidence. D11 (7 March 2024) provides further evidence. Suppression of the transcript's relevance to the Oxus valuation is analytically significant.

NOTES

- **Decision 7** (24 May 2024 Final Order): added at NZ's instruction — unilateral drafting by H's side confirmed on face of order.

- **Decision 9** (Recusal): filed from 10 February 2025, never determined — treated as a standalone decision-point, not a sub-event.
- **Decision 16** (FA-2026-000019): Decree Absolute appeal — at standstill pending JR update. No hearing listed as at 3 April 2026.
- Tag colour change: UNSUPPORTED now displayed in green per NZ instruction.

Standing instructions: Paul Sibenik not mentioned. Address withheld throughout.

Nadia Zahmoul — Litigant in Person — 3 April 2026